

HOUSE No. 220

The Commonwealth of Massachusetts

PRESENTED BY:

Mindy Domb and Simon Cataldo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a diaper benefits pilot program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/15/2025</i>
<i>Simon Cataldo</i>	<i>14th Middlesex</i>	<i>1/15/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>3/25/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>3/25/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>3/25/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/25/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/4/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/31/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>3/25/2025</i>
<i>Frank A. Moran</i>	<i>17th Essex</i>	<i>3/25/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>3/25/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/1/2025</i>

HOUSE No. 220

By Representatives Domb of Amherst and Cataldo of Concord, a petition (accompanied by bill, House, No. 220) of Mindy Domb and Simon Cataldo for legislation to establish a diaper insufficiency fund. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 149 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a diaper benefits pilot program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as appearing in the 2016 Official Edition, is hereby
2 amended by inserting, after section 2J, the following new section:-

3 Section 2K. (a) As used in this section, the following words shall have the
4 following meanings unless context clearly requires otherwise:

5 “Commissioner,” the commissioner of the department of public health.

6 “Department,” the department of public health.

7 “Fund,” the diaper benefits trust fund.

8 “Organization,” an entity, including but not limited to, that acts in whole or in part
9 as a diaper bank, diaper distribution organization, food bank or food pantry.

10 “Pilot program,” an organization or organizations receiving funds from the
11 department to provide diapers to low-income families with diaper-wearing infants and/or
12 children. Organizations may collaborate to maximize distribution in their respective regions.

13 (b) There shall be established and set up on the books of the commonwealth a
14 fund to address diaper insufficiency that shall be administered by the commissioner. The fund
15 shall be credited with: (i) revenue from appropriations or other money authorized by the general
16 court and specifically designated to the fund; (ii) interest earned on such revenues; and (iii) funds
17 from public and private sources such as gifts, grants and donations to further the pilot program.
18 Amounts credited to the fund shall not be subject to further appropriation and any money
19 remaining in the fund at the end of the fiscal year shall not revert to the General Fund.

20 (c) The department shall distribute resources from the fund by issuing a request
21 for proposal through which an organization or organizations may apply. Funds received shall be
22 used for one or more of the following purposes: (i) acquiring diapers, (ii) storing diapers, (iii)
23 distributing diapers, (iv) organizing diaper drives, or (v) marketing the pilot program.

24 The department shall grant funds based on the demonstrated capacity and need of
25 the applicant. The department shall fund up to 12 applicants no more than 2 of which shall be
26 from the western region of the commonwealth; no more than 2 of which shall be from the central
27 region of the commonwealth; no more than 2 of which shall be from the eastern region of the
28 commonwealth; no more than 2 of which shall be from the southeastern region of the

commonwealth; no more than 2 of which shall be from Cape Cod or the Islands; and no more than 2 of which shall be from the Merrimack valley.

Amounts received from private sources shall be approved by the commissioner of the department and subject to review before being deposited in the fund to ensure that pledged funds are not accompanied by conditions, explicit or implicit, on distributing diapers.

(d) Not later than one year after the implementation of each pilot program said department shall provide a report to the joint committee on children, families and persons with disabilities and to the house and senate committees on ways and means. The report shall include, but not be limited to: (i) the number of children receiving diapers through the pilot program; (ii) the number of households receiving diapers through the pilot program; (iii) the number of diapers distributed through the pilot program to families in each region; (iv) an explanation of the organization's distribution process and allocation determination; (v) the sources and the amounts remaining in the fund; (vi) if and how the pilot program was able to leverage additional support; (vii) the amounts distributed and the purpose of expenditures from the fund; and (viii) the advisability of expanding the pilot program.